

COPYRIGHTS AND GEOGRAPHICAL INDICATION

Unit - 3



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WHAT IS COPYRIGHT ?

- ◉ Copyright comprises a bundle of rights which exists in various types of works including:
- ◉ **Literary** (books, pamphlets, magazines) and
 - ◉ Protects the ***form of expression*** rather than the subject matter of the writing
- ◉ **Artistic works** (paintings, music, poems, plays(Dramatic works), photographs, Films, artistic architecture and choreography)

WHAT TYPES OF RIGHTS DOES COPYRIGHT PROVIDE?

There are two types of rights under copyright:

- (a) **Economic rights**, which allow the owner to derive financial reward from the use and exploitation of the work; and
- (b) **Moral rights**, which highlight the personal link existing between the author and the work.

WHAT ARE THE ECONOMIC RIGHTS COVERED BY COPYRIGHT?

Owner can authorize / prohibit / License the following acts:

- ◉ **Reproduction** in various forms, for example in a printed publication or by recording the work in cassettes, compact disks or videodiscs, or by storing it in computer memories;
- ◉ **Distribution**, for example through sale to the public of copies of the work;
- ◉ **Public performance**, for example by performing music during a concert, or a play on stage;
- ◉ **Broadcasting and communication to the public** , by radio or T.V, cable or satellite;
- ◉ **Translation** into other languages;
- ◉ **Adaptation**, for example by converting a novel or a play into a screenplay for a film;

WHAT RIGHTS DO MORAL RIGHTS COVER?

Under moral rights, the author may claim:

- ⦿ **the right to have authorship recognized** on the work.
- ⦿ That is basically the right of the creator to have his or her name mentioned as the author, in particular when the work is used.
- ⦿ **the right to integrity** of the work, that is the right to object to the work being modified, or being used in contexts that may cause harm to the reputation or honor of the author.

◉ ***Not protected:***

- *Unrecorded choreography (practice of designing)*
- *Slogans, short names, titles*
- *Ideas, procedures, methods, systems, principles*
- *Information that is "common property"*
 - *Calendars, rulers, tape measures, public lists*

COPYRIGHT NOTICE

- ◉ Notice of Copyright
 - *Symbol ©*
 - *Word "copyright"*
 - *Abbreviation "Copr."*
- ◉ *Example: © 2000 John Doe*
- ◉ Sound recording require ***symbol, year first publication*** and ***name of owner***
- ◉ *Example: (P) 2001 A. B. C. Records Inc.*

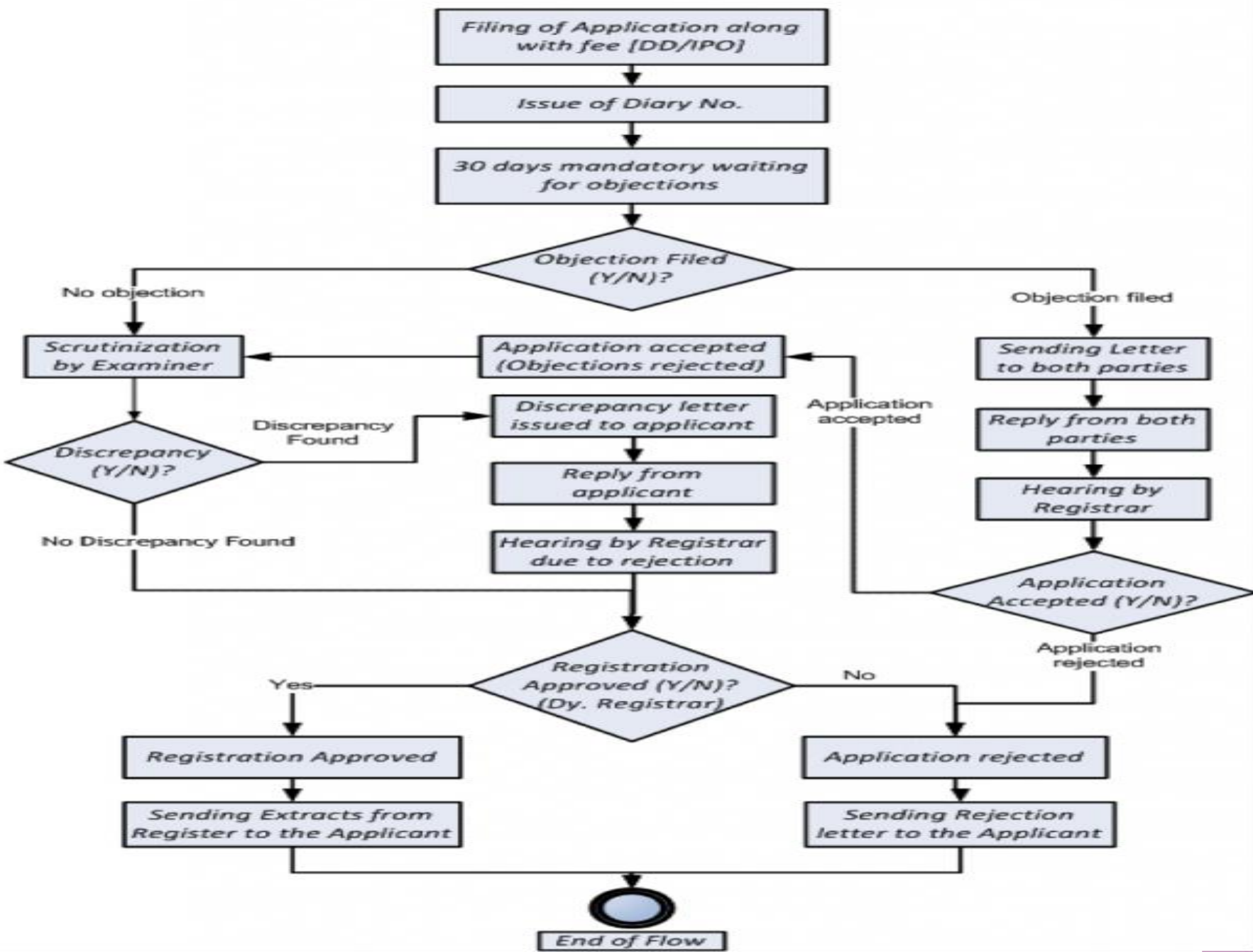
TERM OF COPYRIGHT PROTECTION

- ◉ It is generally protected for authors life time + 60 yrs
- ◉ Computer generated works are protected for 70 yrs
- ◉ Sound recordings and broadcasts are protected for 50 yrs.

REGISTRATION OF COPYRIGHT

- ⦿ The moment a work is created, Copyright protection is obtained automatically without any need for registration or other formalities.
- ⦿ A work enjoys protection by copyright as soon as it is created.
- ⦿ However, many countries provide for a national system of optional registration and deposit of works.
- ⦿ These systems facilitate, for example, questions involving disputes over ownership or creation, financing transactions, sales, assignments and transfers of rights.

Copyright Registration Workflow



- ◉ **COPYRIGHT IN ANY WORK MAY BE REGISTERED**
- ◉ (i) make an application to the Registrar of Copyrights to have the copyright registered.
- ◉ (ii) On the receipt of an application in respect of any work, the **Registrar of Copyrights may**, after holding an inquiry, enter the particulars of the work in the Register of Copyrights.
- ◉ (iii) Registration is not essential. It results in the names or **titles of works, and the names and addresses of authors, publishers and owners** of copyright being entered in the Register of Copyrights.
- ◉ (iv) Entries in this Register are presumed to be true by courts

ROGERS VS. KOONS (PHOTOGRAPH)



- ◉ Art Rogers shot a photograph of a couple holding a line of puppies in a row and sold it for use in greeting cards and similar products.



- ◉ Jeff Koons in the process of creating an exhibit ran across Rodgers' photograph and used it to create a set of statues based on the image.

- ⦿ Koons sold several of these structures, making a significant profit.
- ⦿ Upon discovering the copy, Rodgers sued Koons for copyright.
- ⦿ Koons responded by claiming fair use by parody (using the same form as the original).
- ⦿ Koons was forced to pay a monetary settlement to Rodgers.

HARVARD UNIVERSITY - PLAGIARISM OUTBREAK INVOLVING 125 STUDENTS

Ivy League college's - Introduction to Congress class - May have copied each other's final exams

Professor conducted the exam as "completely open book, open note, open internet, etc..".

He sent an email to students taking the exam that even though it is open book exam - but warned them not to discuss it with each other and to treat it as an "in-class" exam.

The rise of the internet, and the ubiquity of laptops among a student body, has led to many complaints that it is now too easy for students to take exam answers and course work from the world wide web.

Some students supplied identical answers, down to, in some cases, typographical errors, indicating that they had written them together or plagiarized them.

Some students claimed that the similarities in their answers were due to sharing notes or sitting in on sessions with the same teaching fellows.

University's statements indicated that the number of students forced out was around 70.

STUDENT'S NOVEL FACES PLAGIARISM CONTROVERSY - BOOK BY KAAVYA VISWANATHAN '08 CONTAINS SIMILARITIES TO EARLIER AUTHOR'S WORKS

Harvard undergraduate Kaavya Viswanathan '08, "**How Opal Mehta Got Kissed, Got Wild, and Got a Life**," contains several passages that are strikingly similar to two books by Megan F. McCafferty—the 2001 novel "**Sloppy Firsts**" and the 2003 novel "**Second Helpings**."

McCafferty writes on page 6 of her novel "**Sloppy Firsts**" : "Sabrina was the *brainy Angel*. Yet another example of how every girl had to be one or the other: Pretty or smart. Guess which one I got. You'll see where it's gotten me."

Viswanathan writes on page 39 of her novel: "Money penny was the *brainy female character*. Yet another example of how every girl had to be one or the other: smart or pretty. I had long resigned myself to category one, and as long as it got me to Harvard, I was happy. Except, **it hadn't gotten me** to Harvard. Clearly, it was time to switch to category two."

Page 237 of McCafferty's first novel reads: "Finally, four major department stores and 170 specialty shops later, we were done."

Viswanathan wrote on page 51 of her novel: "Five department stores, and 170 specialty shops later, I was sick of listening to her hum along to Alicia Keys...."

‘THESE ALLEGATIONS WERE TAKEN SERIOUSLY’

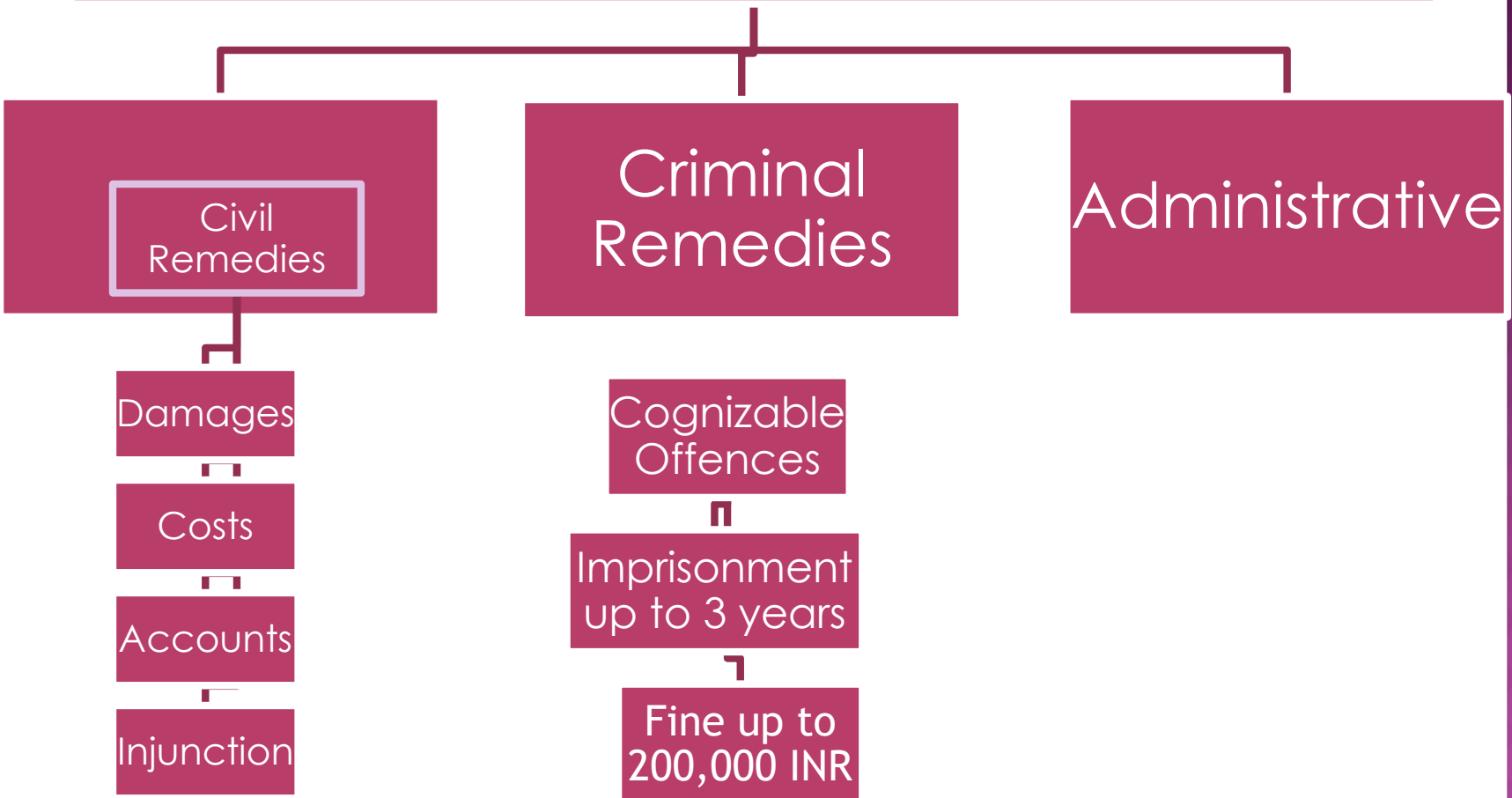
After signing the contracts with

- Brown signed Viswanathan to a two-book, \$500,000 contract
- DreamWorks has purchased the movie rights to Viswanathan’s novel.

Kaavya lost the case and money was paid to the other author and book was withdrawn from the market.

Kaavya lost the case also for copying the style of “**Expression style**”

Penalties and Remedies for Copyright Infringement



If the copyright in any work is infringed, three types of action can be taken.

PENALTIES AND REMEDIES FOR COPYRIGHT INFRINGEMENT

Infringement: action of breaking the terms of a law,

Kind of Infringement	Relief
Copy in a work will be considered infringed- 1. when any person, without a licence granted by the owner of the copyright, or the Registrar of Copyrights, or in contravention of the conditions of a licence so granted, or of any condition imposed by a competent authority- i. does anything, the exclusive right to do which is by this Act conferred upon the owner of the copyright, or ii. permits for profit any place to be used for the communication of the work to the public where such communication constitutes an infringement of the copyright in the work, unless he was not aware and had no reasonable ground for believing that such communication to the public would be an infringement of the copyright; or	○ Civil Remedies : ● Injunction ● Damages ● Account of profit ● Delivery of infringing copies ● Damages for conversion ○ Criminal Remedies : ● Imprisonment of the accused or imposition of fine or both ● Seizure of infringing copies.

Kind of Infringement	Relief
2. when any person- i. makes for sale or hire, or sells or lets for hire, or by way of trade displays or offers for sale or hire, or ii. distributes either for the purpose of trade or to such an extent as to affect prejudicially the owner of the copyright, or iii. by way of trade exhibits in public, or iv. Imports into India, any infringing copies of the work.	Administrative remedies : • Administrative remedies consist of moving the Registrar of Copyrights to ban the import of infringement is by way of such importation and the delivery of the confiscated infringing copies to the owner of the copyright and seeking the delivery.

CRIMINAL REMEDIES

- ◉ **Copyright Act 1957, s.64** empowers the Police (any officer not below the rank of sub-inspector) to seize infringing copies without warrant
- ◉ Police Raids (Power of **search, seizure & arrest** without a warrant)
- ◉ Fines (**min. 50,000-200,000 INR**)
- ◉ Imprisonment (**6 months to 3 years**)



Indian Copyright Act , 1957

The Copyright Act, 1957 governs the laws and applicable rules related to the subject of copyrights in India.

Copyright Act , 1914



British Copyright Act, 1911



Copyright Act of the UK, 1956



Indian Copyright Act , 1957

COPYRIGHT ACT, 1957

- ◉ Act Came into effect from January 1958
- ◉ Amended six times till date, i.e., in 1983, 1984, 1991, 1994, 1999 and 2012.
- ◉ The Copyright (Amendment) Act, 2012 is the most substantial.
- ◉ The main reasons for amendments to the Copyright Act, 1957 include to bring the Act in conformity with WIPO Copyright Treaty (WCT), WIPO Performances and Phonograms Treaty (WPPT)

Indian Copyright Act , 2012

In Copyright Amendment Act 2012, many modifications were made. Few of them are:

- The bill makes special provisions for those who work in film and sound recordings.
- Copyright in a film currently rests with the producer for 60 years.
- The bill allows for the production of copyrighted work in special formats.
- The act gives authors, or their representatives, the right to claim damages against use of their work.

- ◉ ensuring right to receive royalties for
 - authors, and music composers,
- ◉ exclusive economic and moral rights to performers,
- ◉ equal membership rights in copyright societies for authors and other right owners and exception of copyrights for physically disabled to access any works.

GEOGRAPHICAL INDICATIONS OR APPELLATIONS OF ORIGINS.

- ◉ Geographical Indications are about culture, geography, traditions, heritage and traditional practices of people and countries.

WHAT IS A GEOGRAPHICAL INDICATION?

- ◉ It is used to identify agricultural, natural or manufactured goods
- ◉ The manufactured goods should be produced or processed or prepared in that territory.
- ◉ It should have a special quality or reputation or other characteristics based upon the climatic or production characteristics unique to the geographical location

WHAT IS THE BENEFIT OF REGISTRATION OF GEOGRAPHICAL INDICATIONS?

- ◉ It confers legal protection to Geographical Indications in India
- ◉ Prevents unauthorised use of a Registered Geographical Indication by others
- ◉ It provides legal protection to Indian Geographical Indications which in turn boost exports.
- ◉ It promotes economic prosperity of producers of goods produced in a geographical territory

WHO CAN APPLY FOR THE REGISTRATION OF A GEOGRAPHICAL INDICATION?

- ◉ Any association of persons, producers, organisation or authority established by or under the law can apply:
- ◉ The applicant must represent the interest of the producers
- ◉ The application should be in writing in the prescribed form
- ◉ The application should be addressed to the Registrar of Geographical Indications alongwith prescribed fee.

REGISTRATION IS NOT COMPULSORY

- ◉ However, Registration affords better legal protection to facilitate an action for infringement
- ◉ The registered proprietor and authorised users can initiate infringement actions
- ◉ The authorised users can exercise the exclusive right to use the geographical indication.

ADVANTAGES OF GI

- ◉ Legal protection and preventing from unauthorized use
- ◉ Benefits for farmers and local producers
- ◉ Boost the rural development
- ◉ Reduces unfair practices of trade
- ◉ Preserving local culture and resources

HOW TO APPLY

- ◎ The application must be filed at the Office of the GI Registry located in Chennai
 - Geographical Signification of the Indication
 - Geographical Area;
 - Details of the appearance;
 - Particulars of the producers;
 - Affidavit deposing the Applicant's right to become the Registrant;

HOW TO APPLY

- ◉ The Registrar will have the Application examined.
- ◉ Published in the GI journal.
- ◉ Notice of Opposition within a maximum period of four months of publication in the Journal.
- ◉ If the Registrar accepts the Application then a certificate of registration issued.

HOW LONG THE REGISTRATION OF GEOGRAPHICAL INDICATION IS VALID?

- ◉ The registration is valid for a period of 10 years and can be renewed from time to time for further period of 10 years each.

HOW A GEOGRAPHICAL INDICATION IS DIFFERENT FROM A TRADE MARK?

- ◉ A trade mark is a sign which is used in the course of trade and it distinguishes goods or services of one enterprise from those of other enterprises.
- ◉ Whereas a Geographical Indication is used to identify goods having special characteristics originating from a definite geographical territory.

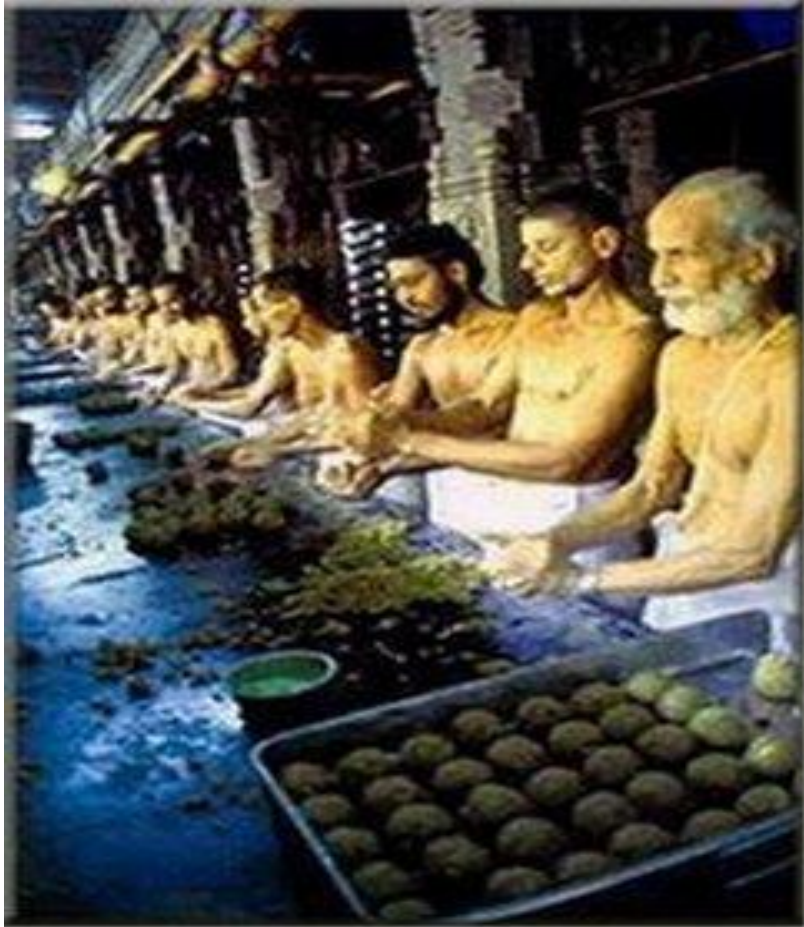
- ◉ India, as a member of the World Trade Organization (WTO), enacted the Geographical Indications of Goods (Registration & Protection) Act, has come into force with effect from 15th September 2003.
- ◉ Darjeeling tea became the first GI tagged product in India, in 2004-05, since then by May 2017, 295 had been added to the list

SOME EXAMPLES OF INDIAN GEOGRAPHICAL INDICATIONS

- ◉ Basmati Rice
- ◉ Darjeeling Tea
- ◉ Kanchipuram Silk
- ◉ Alphanso Mango
- ◉ Nagpur Orange
- ◉ Kolhapuri Chappal
- ◉ Bikaneri Bhujia
- ◉ Agra Petha
- ◉ Palakkadan Matta
- ◉ Navara Rice
- ◉ Banaras sarees



Kancheepuram Saree
(Kancheepuram)



Tirupathi Laddu



Pochampally Ikat

- ◉ Madhubani paintings
- ◉ Goa feni -
- ◉ Kondapali Bommalu



International GI

- ◉ Scotch Whisky (Scotland)
- ◉ Champagne (France)
- ◉ “Roquefort - sheep cheese”,
- ◉ “Chianti”- red italian wine,
- ◉ “Havana”, and “Tequila”



To get protection worldwide?

- ◉ **Lisbon Agreement** for the Protection of Appellations of Origin and their International Registration administered by WIPO

Geographical Indication	Product	State	Date of Registration
Darjeeling Tea	Tea	West Bengal	29.10.04
Pochampally Ikat	Textile	Andhra Pradesh	31.12.04
Chanderi saree	Textile	Guna, Madhya Pradesh	28.01.05
Kotpad Handloom fabric	Textile	Koraput, Orissa	02.06.05
Kota Doria	Textiles	Kota, Rajasthan	05.07.05
Kancheepuram silk	Textiles	Tamil Nadu	02.06.05
Bhavani Jamakkalam	Textile, carpets	Erode, Tamil Nadu	05.07.05
Mysore Agarbathi	Incense sticks	Mysore, Karnataka	02.06.05
Aranmula Kannadi	Metal Mirror	Kerala	19.09.05
Salem Fabric	Textiles	Tamil Nadu	19.09.05
Solapur Chaddar	Textiles	Maharashtra	19.09.05
Solapur Terry Towel	Textiles	Maharashtra	19.09.05
Mysore Silk	Textiles	Karnataka	28.11.05
Kullu Shawl	Textiles	Himachal Pradesh	12.12.05
Madurai Sungudi	Textiles	Tamil Nadu	12.12.05
Kangra Tea	Tea	Himachal Pradesh	12.12.05

Geographical Indication	Product	State	Date of Registration
Coorg Orange	Horticulture Product	Karnataka	30.01.2006
Mysore Betel Leaf	Horticulture Product	Karnataka	30.01.2006
Nanjanagud Banana	Horticulture Product	Karnataka	30.01.2006
Mysore Sandalwood Oil	Essential Oil	Karnataka	30.01.2006
Mysore Sandal Soap	Soap	Karnataka	30.01.2006
Bidriware	Handicrafts	Karnataka	30.01.2006
Channapatna Toys and Dolls	Handicrafts	Karnataka	30.01.2006
Coimbatore Wet Grinder	Wet Grinder	Tamil Nadu	30.01.2006
Mysore Rosewood Inlay	Handicrafts	Karnataka	30.01.2006
Kasuti Embroidery	Embroidery (Textiles)	Karnataka	30.01.2006
Mysore Traditional Paintings	Paintings	Karnataka	30.01.2006

TIRUPATI LADDU



Tirupati laddu: the famous sweet enriched with dried fruits and nuts, given to millions of pilgrims as “prasada” from the sacred kitchen within the Tirupati temple premises on the Tirumala hills by Tirumala Tirupati Devasthanams (temple administration)

- ◉ Tirumala Tirupati Devasthanams (temple administration) had been trying to enforce its rights under the Geographical Indications, and was accorded in September 2009.

- ◉ The *laddu*, made from flour, sugar, *ghee* (clarified butter), oil, cardamom and dry fruits is sought after by those visiting the temple.
- ◉ *Archakas*, or hereditary priests, in the temple's kitchen prepare around 50 million *laddus* every year for around 25 million visitors to the temple

DARGEELING TEA



- ◉ The quality, reputation and characteristics of Darjeeling tea are essentially attributable to its geographical origin.
- ◉ Darjeeling Tea is the world's most exotically flavored tea which sets it apart from other teas
- ◉ Its location, climate, soil conditions, altitude and meticulous processing are very unique
- ◉ Tea is rich in anti oxidants that strengthens your immune system.

DARGEELING TEA

Darjeeling Tea - The Best

- ◉ 10 million kgs of tea grown every year
- ◉ 87 Tea gardens grow this fabled tea
- ◉ at over 5,000 mts. above sea level
- ◉ spread over 17,500 hectares of land
- ◉ There are four flavors of Darjeeling Tea that are available in market.
- ◉ They are in accordance with plucking period and differ from season to season.

BASMATI RICE

- ◉ Basmati rice is traditionally grown in Northern India and adjacent part of Pakistan
- ◉ *Bas* - Aroma, Basmati - Aromatic Rice
- ◉ Unique Characteristics - long grain (increases substantially on cooking), distinctive aroma and taste.
- ◉ RiceTec, a Texas-based company, in 1997, patented some types of rice they developed as “American basmati”.

- ◉ RiceTec Inc, had been trying to enter the international Basmati market with brands like “Kasmati” and “Texmati”.
- ◉ Ultimately, the company claimed to have developed a new strain of aromatic rice by interbreeding basmati with another variety.
- ◉ They sought to call the allegedly new variety as Texmati or American Basmati.

- ◉ India has been one of the major exporters of Basmati to several countries and granting patent to Rice tec violated the GI Act under the TRIPS agreement
- ◉ Soon after a request for re - examination of this patent, Rice Tech chose to withdraw its claims